

HOUSE No. 1681

The Commonwealth of Massachusetts

PRESENTED BY:

Rodney M. Elliott

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act further regulating the discharge of fireworks in densely populated neighborhoods.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/13/2025</i>

HOUSE No. 1681

By Representative Elliott of Lowell, a petition (accompanied by bill, House, No. 1681) of Rodney M. Elliott relative to further regulating the discharge of fireworks in densely populated neighborhoods. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3634 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act further regulating the discharge of fireworks in densely populated neighborhoods.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 39 of chapter 148 of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by inserting after the fourth paragraph the following paragraph:-

3 Whoever shall use or explode or cause to explode any fireworks in violation of this
4 section in an area located in a census tract with a population density of 1,000 or more persons per
5 square mile shall be punished by a fine of not less than \$200 and not more than \$500, or by
6 imprisonment for not more than 6 months, or both. Any officer qualified to serve criminal
7 process shall seize all of the fireworks mentioned herein without a warrant, and the fireworks
8 seized shall, upon conviction of such violation, be forfeited to the commonwealth.